

25VECV04737 25VECV04737

County: los-angeles

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Case Number: 25VECV04737 Hearing Date: June 26, 2026 Dept: T

25VECV04737 Ebrahimpour v Ibarra

[TENTATIVE] ORDER: Defendant Farmers Insurance Exchange's Demurrer to the First Amended Complaint is CONTINUED to July 2, 2026 at 8:30 a.m.

Defendant Farmers Insurance Exchange's Motion to Strike Portions of the First Amended Complaint is CONTINUED to July 2, 2026.

Introduction

Defendant

Farmers Insurance Exchange (Defendant) demurred to Plaintiff Narmin Ebrahimpour's (Plaintiff) First Amended Complaint (FAC). Defendant's demurrer placed into issue the second cause of action (COA) for uninsured motorist (UM) claim. Defendant moved to strike the UM claim that sounds in negligence.

Discussion

Defendant

argued that the UM claim failed to plead sufficient facts because Defendant is not alleged to be a tortfeasor; owes no duty of care for the accident; and UM claims are required to be arbitrated. (Ins. Code, sec. 11580.2(f).)

Although

the title to the second COA asserts a claim based upon negligence, a UM claim is not a tort claim. As alleged in the COA, Plaintiff alleged that the UM claim is based upon the UM terms of the insurance policy issued by

Defendant. (FAC pars. 16-20.) It is undisputed that Defendant is not a tortfeasor and owes no duty of care regarding the underlying automobile accident occurring on September 10, 2023. Defendant's arguments as to duty of care for the underlying automobile accident are not applicable to the UM COA.

Defendant

further argued that there is another action pending. However, Defendant failed to cite any other/separate action that is pending. Without citation to another/separate case, Defendant failed to meet its initial burden on the issue. The demurrer based upon another action pending is unpersuasive. To the extent that Defendant's argument is grounded upon the allegations in the first COA for negligence as to the separate and prior accident occurring on August 24, 2023, with Co-Defendant Juan Alberto Ibarra, the theory of another action pending is inapplicable. The allegations in the first COA are not the same claim and not made against Defendant. Because of these two defects, the argument of "another action pending" is without merit.

Defendant

then argued that the UM claim is required to be arbitrated. However, a demand for arbitration is not shown to be a pleading element of a UM claim. On this defect in the argument, good cause exists to overrule the demurrer. Despite the argument not being proper for a demurrer, the Court reviewed the substance of the issue.

A demand

for arbitration is a dispute over the venue of the action – whether the action should be heard in arbitration or as a civil action. Arbitration is mandatory for UM claims, as required by statute and the policy. (Ins. Code, sec. 11580.2(f).) Per the policy terms and statute, Defendant asserted that the matter should be arbitrated. However, Plaintiff expressly alleged in the FAC that a civil action is the proper venue because the damages from the September 10, 2023, accident are overlapping with the damages from the August 24, 2023, automobile accident. (FAC pars. 21-25.) The accident on August 24, 2023, is the basis of the first COA for negligence in the instant FAC. The second COA, which is at issue in this Demurrer, is grounded upon the second automobile accident occurring on September 10, 2023. The Court has authority to consolidate a contractual arbitration proceeding, inclusive of the arbitration under the statutory UM

Act, with a civil action by the insured against a third-party tortfeasor when the two claims include common issues of law or fact and the possibility of conflicting rulings exists. (Mercury Insurance Group v. Superior Court (1998) 19 Cal.4th 332, 345-348 (Mercury).) Because the two accidents at issue in this case are close in proximity as to time (i.e., 17 days apart) and Plaintiff being injured in both accidents, the two accidents could have overlapping claims of injuries/damages. With the issue of overlapping injuries, Plaintiff sufficiently showed that the two claims have common issues of fact. Further, the Court finds that there is a risk of conflicting rulings because of the overlapping claims for damages and the possibility of liability between the two defendants being disproportionate. Because Plaintiff sufficiently showed that common issues of fact exist between the two claims and sufficiently showed the risk of conflicting rulings, the Court finds that venue for the second COA is properly filed in this civil action. Defendant's demurrer based upon their alleged rights to arbitration are insufficient to sustain the demurrer to the second COA.

Defendant's Reply argued that Code of Civil Procedure, section 1281.2(c) does not apply to this case because the statute does not authorize Plaintiff to file/plead the UM claim as a separate cause of action. The Court agrees that the Mercury opinion and Code of Civil Procedure, section 1281.2(c) only provided the authority to "consolidate" a UM arbitration proceeding with a civil action. However, the Court file reflects that a petition to compel arbitration is currently scheduled to be heard by this Court on July 2, 2026. Procedurally, the petition to compel arbitration is in response to the filing of this action against Defendant. The accident occurred in 2023 and there is no showing that arbitration was sought to be instigated previously. The Court finds that the issue as to arbitration of this claim is properly before the Court via the FAC to the extent that it promulgated the petition to compel arbitration. Since the issue as to arbitration will be heard by the Court on July 2, 2026, and in an abundance of caution to remain within the scope of the legal authorities reviewed, the Court exercises its discretion to CONTINUE the demurrer to be heard concurrently with the petition to compel arbitration. Upon ruling on the petition to compel arbitration, the Court will revisit whether good cause exists for consolidation, if necessary.

The
demurrer to the second COA in the FAC is CONTINUED.

Defendant's motion to strike re-asserted the same arguments raised in the demurrer regarding arbitration of UM claims. In that the Court reviewed the issues above; the Court applies the same analysis to the motion to strike. Again, in an abundance of caution, the Court finds good cause to CONTINUE the motion to strike to be heard concurrently with the Petition to Compel Arbitration.

The
motion to strike is CONTINUED.